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Case Number: 21STCV032534 Hearing Date: July 21, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JOSE FLORES, an
individual,

Plaintiff,

vs.

DR. SEHGAL ASHISH, an individual; and KAISER
FOUNDATION HEALTH PLAN, INC, and DOES 1 through 100, inclusive,

Defendants.

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CASE NO.: 21STCV32534

ORDER

GRANTING DEFENDANTS ASHISH SEHGAL, M.D. AND SOUTHERN CALIFORNIA PERMANENTE
MEDICAL GROUP'S MOTION FOR SUMMARY JUDGMENT

I.

BACKGROUND

Plaintiff Jose Flores

("Plaintiff") alleges Defendant Dr. Ashish Sehgal ("Dr. Sehgal") sexually
assaulted him on June 2, 2009, while administering emergency medical care at a
Kaiser Permanente hospital in Panorama City, CA. (See Second Amended
Complaint ("SAC"), ¶¶ 16-24.) Plaintiff also brings this action against
Dr. Sehgal's employer, Southern California Permanente Medical Group ("SCPMG").

Plaintiff initially served

his Complaint and Summons on Defendant Kaiser Foundation & Health Plan Inc.
on September 3, 2021. The clerk of court entered judgment against Kaiser
Foundation & Health Plan Inc. on November 4, 2021.

On December 17, 2021,
the Court approved Plaintiff's amendment to his Complaint, correcting Kaiser Foundation & Health Plan Inc.'s name to Defendant Kaiser Foundation Health Plan, Inc. ("Kaiser").

Plaintiff attempted to
have default judgment entered against Kaiser several times since initially
filing his action on September 2, 2021. As part of that process, on March 22,
2024, Plaintiff dismissed Dr. Sehgal. However, the Court later reinstated Dr.
Sehgal as a defendant at Plaintiff's request.

On August 13,
2025, the Court granted Kaiser's Motion for Summary Judgment.

Dr. Sehgal and
SCPMG now move for summary judgment, or alternatively, summary adjudication.

II.
PROCEDURAL
HISTORY

On September 2, 2021,
Plaintiff served his Complaint, alleging (1) Sexual Rape; (2) Sexual Battery
Pursuant to Civil Code § 1708.5; (3) Assault; (4) Battery; (5) Intentional
Infliction of Emotional Distress; (6) Professional Negligence (As to Dr. Sehgal);
and (7) Professional Negligence (As to Kaiser Permanente).

On November 4, 2021, the
clerk of court entered default against "Kaiser Foundation & Health Plan
Inc."

On December 17, 2021,
Plaintiff amended his Complaint to correct Defendant's name to "Kaiser Foundation Health Plan, Inc."

On October 2, 2023, this
matter was transferred to this Court, which has held several hearings
addressing various defects in Plaintiff's default judgment package.

On March 22, 2024,

Plaintiff dismissed Dr. Sehgal.

On October 4, 2024, this
Court granted Kaiser's Motion to Quash Service of Summons.

On October 18, 2024,
Plaintiff filed his FAC against Kaiser, alleging (1) Sexual Rape; (2) Sexual
Battery Pursuant to Civil Code § 1708.5; (3) Assault; (4) Battery; (5)
Intentional Infliction of Emotional Distress; and (6) Professional
Negligence.

On January 7, 2025, the
Court overruled Kaiser's Demurrer but granted its Motion to Strike.

On January 7, 2025,
Plaintiff filed an Amended Motion for Court Order to File an Amended Pleading
Including Claim for Punitive Damages.

On January 10, 2025,
Defendant filed its Answer to Plaintiff's FAC.

On February 24, 2025,
Plaintiff submitted a Second Amended Complaint without leave of court.

On March 18,
2025, the Court denied Plaintiff's Motion for Leave to File an Amended
Complaint to include punitive damages.

On May 6,
2025, the Court denied Plaintiff's Motion to Vacate the Court's Order Granting
Defendant's Motion to Strike.

On May 21,
2025, Plaintiff designated Doe 1 as Southern California Permanente Medical
Group and Doe 2 as Dr. Ashish Sehgal.

On May 21,
2025, Plaintiff submitted a proposed Second Amended Complaint.

On May 22,

2025, the Court denied Plaintiff's Ex Parte Application for an Order to Amend his Complaint to add Doe Defendants.

On August 8,

2025, the Court granted in part Plaintiff's Motion for Leave to Amend Complaint and allowed him to add Dr. Sehgal back as a defendant to the action but denied his motion as to Southern California Permanente Medical Group ("SCPMG").

On August 8,

2025, the Court also granted Kaiser's motion compelling Plaintiff's further responses to form interrogatories but denied its motion compelling Plaintiff's further responses to special interrogatories.

On August 8,

2025, the Court granted in part Plaintiff's motion compelling Defendant's further responses to requests for admission and special interrogatories but denied it as to form interrogatories and requests for production.

On August 8,

2025, the Court granted Dr. Sehgal's and SCPMG's Motion to Quash.

On August 11,

2025, Plaintiff filed his Second Amended Complaint which added three causes of action and both Dr. Sehgal and Southern California Permanente Medical Group as defendants. Since these amendments are beyond the scope permitted by the Court's order granting him leave to amend, the Court struck this Second Amended Complaint.

On August 13, 2025, the

Court granted Kaiser's Motion for Summary Judgment.

On September 23, 2025,

the Court denied Plaintiff's Motion for Reconsideration.

On December

23, 2025, the Court granted Plaintiff's Motion for Leave to Amend. Plaintiff filed his Second Amended Complaint on the same day. The SAC alleges alleging (1) Sexual Rape; (2) Sexual Battery Pursuant to Civil Code § 1708.5; (3) Assault; (4) Battery; (5) Intentional Infliction of Emotional Distress; and (6) Professional Negligence.

On January 21, 2026, the Court denied Plaintiff's Motion for Leave to File an Amended Pleading Including Claim for Punitive Damages.

On February 13, 2026, the Court granted SCPMG and Plaintiff's stipulation to strike Plaintiff's claims for punitive damages from his SAC.

On April 24, 2026, Dr. Sehgal and SCPMG (jointly "Moving Defendants") filed the instant Motion.

On April 28, 2026, the Court denied Plaintiff's Motion to Compel Further Responses to Requests for Admission.

On May 8, 2026, Plaintiff filed an Opposition.

On July 10, 2026, Moving Defendants filed a Reply.

III.

LEGAL STANDARD

The function of a motion for summary judgment or summary adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (See *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) In analyzing such motions, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.) Thus, summary judgment is granted when, after the Court's consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist, and the moving party is entitled to judgment as a matter of law. (See Code Civ. Proc. § 437c(c);[1] *Villa v. McFarren* (1995) 35 Cal.App.4th 733, 741.)

“On a motion

for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) As to each claim as framed by the complaint, a defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate or establish an essential element. (See id., 128 Cal.App.4th at 1520.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.) A motion for summary judgment must be denied where the moving party’s evidence does not prove all material facts, even in the absence of any opposition. (See Leyva v. Superior Court (1985) 164 Cal.App.3d 462, 475; Salesguevara v. Wyeth Labs., Inc. (1990) 222 Cal.App.3d 379, 384.)

Once the

moving party has met its burden, the burden shifts to the opposing party to show via specific facts that a triable issue of material fact exists to a cause of action or a defense thereto. (See Code Civ. Proc. § 437c(o)(2).)

IV.

ANALYSIS

A.

Evidentiary Objections

Overruled:

No. 1.

Sustained: No.

2 (“medically” and “under the sedative effects of a drug named Lorazepam” that Dr. Sehgal prescribed and administered to me by his staff”); No. 7 (“not a candidate for such test or screening”); Nos. 4-6.

B.

Moving Defendants’ Undisputed Material

Facts

Moving Defendants

present the following undisputed facts in support of all 11 issues sought to be resolved by this Motion. The Complaint was filed on September 2, 2021. (See Def.'s Sep. Stmt. Undisputed Material Facts ("UMF"), No. 1.) On June 3, 2009, at 6:24 p.m., Plaintiff presented to the emergency department of Kaiser Panorama City Medical Center with a chief complaint of headache, right sided lower abdominal pain, and anxiety. (See id., No. 2.) He reported to nurse Bokhee Lee, R.N. that he had taken lorazepam at 7:30 a.m. (See id., No. 3.) Plaintiff was evaluated by emergency medicine physician, Ashish Sehgal, M.D. Plaintiff reported intermittent headaches for two weeks and right mid abdominal pain without radiation. He reported no fever, vomiting, dizziness, or chest pain. (See id., No. 4.)

Dr. Sehgal

placed orders for lab work, cardiac monitoring, head CT, EKG, and medication. The medication order requested sodium chloride solution, which is salt water. (See id., No. 5.) A guaiac test was performed and resulted negative, and the CT scan was normal. (See id., No. 6.)

Plaintiff first

requested a copy of his medical records on July 6, 2017, and they were sent to him on July 7, 2017. (See id., No. 9.) Other than Plaintiff's own unqualified assessment that the test performed by Dr. Sehgal on June 3, 2009, was for no medical purpose and was not done in the "proper" way, he has alleged no other proof exists that Dr. Sehgal's actions in inserting a finger into his rectum to perform a guaiac test were for a sexual purpose. (See id., Nos. 10-11.) Plaintiff responded to Special Interrogatories, Set One, propounded by former defendant Kaiser, that he believes the guaiac test performed had no professional purpose because his complaints had no relation to his genitalia. (See id., Nos. 12-15.)

Plaintiff testified

he "only came to think that evaluation - - or the incident was not a medical evaluation properly done when I read the medical records and when I researched the meaning of the guaiac test, when I understood exactly what the test is and the way it should be done and who is the - - who are the patients that normally will have that kind of test performed." (See id., No. 16.) Plaintiff confirmed it was simply his belief that Dr. Sehgal performed a test he should not have that led him to believe the purpose was for sexual gratification. (See id., No. 17.) Plaintiff testified that while Dr. Sehgal had his finger in his anus,

he “thought it was wrong.” (See id., No. 18.) Plaintiff has stated he was “aware of what was happening” during the visit at issue. (See id., No. 19.)

The care provided to Plaintiff by Dr. Sehgal in the emergency room fully complied with the standard of care. (See id., No. 20.) Dr. Sehgal has never been tried or convicted of any crime related to sexual assault. (See id., No. 21.) SCPMG is not aware of any complaints of a sexual nature made against Dr. Sehgal prior to the allegations made by plaintiff. (See id., No. 21.)

C.

Moving Defendants’ Motion for Summary
Judgment is Granted

The Complaint

alleges Plaintiff sought care and treatment with Dr. Sehgal on June 3, 2009. Plaintiff alleges Dr. Sehgal performed a guaiac test without consent and for no medical purpose, but instead for a sexual purpose. The Complaint alleges: (1) Sexual Rape; (2) Sexual Battery Pursuant to Civil Code § 1708.5; (3) Assault; (4) Battery; (5) Intentional Infliction of Emotional Distress; and (6) Professional Negligence. The sixth cause of action is pled only against SCPMG.

1.

Statute of Limitations – Code of Civil
Procedure § 340.5

Code of Civil

Procedure § 340.5 provides relevant part as follows.

“In an

action for injury

or death against

a health care provider based upon such person's alleged

professional negligence, the time for the commencement of action shall be three years after the

date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should

have discovered, the injury, whichever occurs first. In no event shall the time for commencement of legal

action exceed three years unless tolled for any of the following: (1) upon

proof of fraud, (2) intentional concealment, or (3) the presence of a foreign

body, which has no therapeutic or diagnostic purpose or effect, in the person

of the injured person.” (emphasis added.)

“The patient

is charged with ‘presumptive’ knowledge of his negligent injury, and the statute commences to run, once he has “‘notice or information of circumstances to put a reasonable person on inquiry, or has the opportunity to obtain knowledge from sources open to his investigation...” (Gutierrez v. Mofid (1985) 39 Cal.3d 892, 896-97, quoting Sanchez v. South Hoover Hospital (1976) 18 Cal.3d 93, 101 [emphasis in original].)

Moving Defendants

argue section 340.5 applies to Plaintiff’s claims as the gravamen of his claims are for professional negligence and Plaintiff is unable to establish he was sexually assaulted such that section 340.16[2] applies. (See Mot. at 6:12-19, 8:14-25, 10:9-11, citing Larson v. UHS of Rancho Springs, Inc. (2014) 230 Cal.App.4th 336.) In support of the latter, Moving Defendants cite to Plaintiff’s allegation that “without a written or verbal consent, without explaining anything and without Plaintiff’s permission...Dr. Ashish, Sehgal with gloves inserted his index finger into Plaintiff’s anus for a period of time.” (UMF No. 13.) Moving Defendants submit Plaintiff’s responses to interrogatories seeking all facts that the guaiac test had no professional purpose and was motivated by sexual gratification. Plaintiff responded the guaiac test had no professional purpose because his complaints had no relation to his genitalia and Dr. Sehgal was the only doctor who suggested and performed this exam. (See id., Nos. 14-15.)

Moving Defendants

argue the alleged injury occurred on June 3, 2009, and thus Plaintiff’s claims were time-barred on June 3, 2012. (See UMF Nos. 1-2.) Moving Defendants additionally argue Plaintiff was on inquiry notice when the alleged conduct occurred because Plaintiff testified at his deposition he was aware of Dr. Sehgal’s inserting his finger into his rectum at the subject visit and believed it was wrong. (See id., Nos. 18-19.) Moving Defendants further argue, at best, the statute was tolled until 2018 because Plaintiff received a copy of his medical records on July 6, 2017, and that is when Plaintiff testified he “came to think that evaluation - - or the incident was not a medical evaluation properly done...” (See id., Nos. 9, 16.)

The Court

finds Defendants do not show that Plaintiff's first through fifth claims are at their core, professional negligence claims. "Section 340.5 is part of the Medical Injury Compensation Reform Act (MICRA)...when a plaintiff asserts a claim against a health care provider on a legal theory other than professional negligence, courts must determine whether the claim is nonetheless based on the health care provider's professional negligence, which would require application of MICRA. [Citation.] To make that determination, courts must examine not only the legal theory alleged, but also the nature of the health care provider's alleged conduct and the legislative history of the MICRA provision at issue. [Citations.] When, as here, the question presented concerns which limitations period applies, courts also must focus on the nature or gravamen of the claim, not the label or form of action the plaintiff selects." (Larson v. UHS of Rancho Springs, Inc. (2014) 230 Cal.App.4th 336, 346-47.) Here, Plaintiff's six causes of action are based on Dr. Sehgal's performing a guaiac test "without a written or verbal consent...and without Plaintiff's permission." (See SAC ¶¶ 18, 26, 42, 46, 61, 74, 86.) Though Moving Defendants present evidence by way of interrogatories that Plaintiff lacks evidence to support his intentional tort claims, Moving Defendants do not submit an undisputed fact or evidence showing that Plaintiff consented to Dr. Sehgal's performing the guaiac test such that the Court could treat these claims as ones based on professional negligence. (See Saxena v. Goffney (2008) 159 Cal.App.4th 316, 324 ["An action 'should be pleaded in negligence' when the doctor performs an operation to which plaintiff consents, but without disclosing sufficient information about the risks inherent in the surgery."].) Because Plaintiff's intentional tort claims are based on the theory Dr. Sehgal performed a medical test without any consent and for an ulterior purpose, and Moving Defendants haven't submitted evidence showing Plaintiff consented to the guaiac test, the Court finds Plaintiff's first through fifth claims aren't based on professional negligence. (See Cobbs v. Grant (1972) 8 Cal.3d 229, 240.)

As to

Plaintiff's sixth cause of action for professional negligence asserted against SCPMG, the Court cannot conclude section 340.5 applies to this claim. Section 340.5 applies to claims for professional negligence asserted against a health care provider. (See Code Civ. Proc. § 340.5.) A health care provider is defined as a licensed person, licensed clinic, licensed health dispensary, licensed health facility, or the legal representatives of a health care provider. (See id.) Moving Defendants haven't presented any undisputed facts or evidence showing SCPMG is a health care provider within the meaning of

the statute. Accordingly, the Court does not apply the statute of limitations imposed by § 340.5 on Plaintiff's sixth cause of action.

Accordingly,
the Court DENIES Defendants' Motion on grounds Plaintiff's claims are time barred by Code of Civil Procedure § 340.5.

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2.
1st through 5th Causes
of Action Against Dr. Seghal

a.
First and Second Causes of Action for Sexual
Rape and Sexual Battery

Civil Code §
1708.5 provides, in relevant part,

(a) A person commits a sexual battery
who does any of the following:

(1) Acts with the intent to cause a harmful or
offensive contact with an intimate part of another, and a sexually offensive
contact with that person directly or indirectly results.

(2) Acts with the intent to cause a harmful or
offensive contact with another by use of the person's intimate part,
and a sexually offensive contact with that person directly or indirectly
results.

(3) Acts to cause an imminent apprehension of the
conduct described in paragraph (1) or (2), and a sexually offensive contact
with that person directly or indirectly results.

...

(d) ... (2) "Offensive contact" means contact that offends a reasonable sense of personal dignity.

(Civ. Code § 1708.5.)

"A cause of action for sexual battery under Civil Code section 1708.5 requires the batterer intend to cause a 'harmful or offensive' contact and the batteree suffer a 'sexually offensive contact.' Moreover, the section is interpreted to require that the batteree did not consent to the contact." (Angie M. v. Superior Ct. (1995) 37 Cal.App.4th 1217, 1225 [internal citation omitted].)

As an initial matter, as the Court isn't aware of a cause of action for "sexual rape" per se, it will treat Plaintiff's first cause of action for sexual rape as a sexual battery claim. This approach renders the first claim duplicative of the second. A duplicative cause of action "is the sort of defect that, if it justifies any judicial intervention at all, is ordinarily dealt with most economically at trial, or on a dispositive motion such as summary judgment." (Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 890.)

Moving Defendants

meet their prima facie burden in negating the elements of intent to cause harmful or offensive contact or apprehension of the same and a sexually offensive contact resulted. Moving Defendants submit the declaration of expert David Barcay, M.D. (See UMF No. 20.) Dr. Barcay is Board Certified in Emergency Medicine, Internal Medicine, and Critical Care Medicine and is familiar with the standard of care applicable to the relative timeframe in the emergency room setting. (See id.) Dr. Barcay opines a guaiac test was medically indicated because Plaintiff presented to the emergency department with lower abdominal pain, these complaints were noted by Dr. Sehgal and the emergency department nurse, and his lab work indicated a concern for abdominal pain. (See id.) Dr. Barcay opines "[Plaintiff's] description, at deposition, of the manner in which the test was performed is consistent with the manner in which the test is to be performed." (Id.) Dr. Barcay further opines "it is my opinion that the standard of care does not require a nurse to be present for a Guaiac test. A nurse would only be required as a chaperone, if the patient was of the opposite sex to the doctor." (Id.) Dr. Barcay "conclude[s] to a

reasonable degree of medical probability that the care provided to Mr. Flores by Dr. Sehgal in the Emergency Department was within the standard of care.” (Id.)

Moving Defendants’

evidence Dr. Sehgal’s performance of a guaiac test was within the standard of care tends to show Dr. Sehgal did not intend to cause harmful or offensive contact, as Dr. Sehgal performed a guaiac exam because it was medically indicated. This evidence also tends to show a sexually offensive contact did not occur because Dr. Sehgal performed the exam in an appropriate manner. Thus, the burden shifts to Plaintiff to raise a triable issue.

Plaintiff

fails to raise a triable issue. Plaintiff submits as evidence Dr. Sehgal’s responses to Plaintiff’s Requests for Admission, this Court’s January 7, 2025, Order, and a copy of a subpoena he propounded on Defendants’ expert. (See Sep. Stmt., Exs. A-C.) Plaintiff cites to Exhibit C with respect to Moving Defendant’s UMF No. 20. This evidence does not show Dr. Sehgal intended to cause harmful or offensive contact or apprehension of the same or Plaintiff suffered a sexually offensive contact. Thus, Plaintiff simply fails to raise a triable issue of material fact.

Accordingly,

the Court GRANTS Moving Defendants’ Motion for Summary Adjudication as to the First and Second Causes of Action for Sexual Battery.

b.

Third and Fourth Causes of Action for Assault and Battery

“The

essential elements of a cause of action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed [he or] she was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant’s conduct; (4) plaintiff was harmed; and (5) defendant’s conduct was a substantial factor in causing plaintiff’s harm.” (So v. Shin (2013) 212 Cal.App.4th 652, 668-669.)

In the

medical context, the elements of battery are (1) “a doctor performs an operation to which the patient has not consented” or “a doctor obtains consent of the patient to perform one type of treatment and subsequently performs a substantially different treatment for which consent was not obtained....”; (2) plaintiff was harmed; and (3) defendant’s conduct was a substantial factor in causing plaintiff’s harm. (Cobbs v. Grant (1972) 8 Cal.3d 229, 240; CACI 530A.)

Moving Defendants

argue they are entitled to summary adjudication on the claims for assault and battery because Dr. Barcay opined the guaiac test was medically indicated and performed within the standard of care. (See Mot., at 13:14-19; UMF No. 20.) Dr. Barcay opined, based on a review of Plaintiff’s medical charts, that the test was indicated based on Plaintiff’s abdominal pain complaints and “no act or omission on the part of Dr. Sehgal with respect to the care and treatment he provided to [Plaintiff], caused or substantially contributed to plaintiffs alleged injuries.” (See UMF No. 20.) Moving Defendants further contend Plaintiff will be unable to put forth any evidence establishing Dr. Sehgal’s intent to harm Plaintiff. (See Mot. at 13:17-18.)

The Court

finds Moving Defendants meet their burden in negating an element of Plaintiff’s assault and battery claims. As discussed above, the Court finds evidence Dr. Sehgal performed a guaiac test because it was medically indicated and complied with the standard of care carries Moving Defendants’ burden to likewise negate the intent or threat to cause harmful or offensive contact element of the assault claim.

Moving Defendants

also negate the second and third element of the battery claim that Plaintiff was harmed and that their conduct was a substantial factor in causing Plaintiff’s harm. The evidence Moving Defendants submit tends to show Plaintiff was not harmed because Dr. Sehgal performed the Guaiac test within the standard of care. Defendant’s expert’s testimony also opined Dr. Sehgal’s conduct wasn’t a substantial factor in causing Plaintiff’s alleged harm.

Accordingly,

the Court GRANTS Defendants’ Motion as to the Third and Fourth Causes of Action for Assault and Battery, respectively, as to Dr. Sehgal.

c.

Fifth Cause of Action for Intentional
Infliction of Emotional Distress

“The elements

of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, citation and ellipses omitted.) “Whether conduct qualifies as outrageous is usually a question of fact, but a court may determine in the first instance whether, as a matter of law, alleged conduct may reasonably be regarded as so extreme and outrageous as to allow the matter to proceed to a trier of fact.” (Sandoval v. Pali Institute, Inc. (2025) 113 Cal.App.5th 616, 635.)

Defendants

argue they are entitled to summary adjudication on this claim because the true nature of Plaintiff's claim is one of medical negligence based on lack of informed consent and such claim does not support a finding of extreme and outrageous conduct. (See Mot. at 15:22-25.)

The Court

finds Moving Defendants meet their burden in negating the extreme and outrageous element. As discussed above, Moving Defendants submit the undisputed fact and evidence that Dr. Sehgal's performance of a Guaiac test was within the standard of care. (See UMF No. 20.) The Court finds evidence showing Dr. Sehgal performed a medical test in a manner that met the standard of care supports a showing the conduct was not “so extreme as to exceed all bounds of that usually tolerated in a civilized community.” Thus, the burden shifts to Plaintiff to raise a triable issue of fact.

Plaintiff has

failed to do so. Plaintiff argues this claim is valid and relies on this Court's January 7, 2025, Order as evidence. (See Opp. at 8:3-6; UMF No. 26 [incorporating UMF Nos. 1-22].) This evidence is insufficient to raise a triable issue.

Accordingly,
the Court GRANTS Moving Defendant's Motion as to the Fifth Cause of Action for Intentional Infliction of Emotional Distress against Dr. Sehgal.

3.
1st through 6th Causes
of Action Against SCPMG

Plaintiff's
first through sixth claims against SCPMG are based on theories of SCPMG's vicarious liability and its direct liability in negligently hiring, retaining, and supervising Dr. Sehgal. (See Mot. at 16:4-6; SAC, ¶¶ 30-31, 49-50, 64-65, 78, 89-90, 103-104.) "A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc. § 437c(f)(1).) Accordingly, Moving Defendants must negate both theories to be entitled to adjudication on each claim.

///

a.
Negligent Hiring, Retention,
Supervision

"[A]n
employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee." (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054 ("Capital Cities").) The elements of a cause of action for negligent hiring, retention, or supervision are (1) the employer's hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer knew or should have known the employee was unfit; and (4) harm occurs. (See Evan F. v. Hughson United Methodist Church (1992) 8 Cal.App.4th 828, 836-837.)

"To establish
negligent supervision, a plaintiff must show that a person in a supervisory position over the actor had prior knowledge of the actor's propensity to do the bad act." (See Z.V. v. County of Riverside (2015) 238

Cal.App.4th 889, 902; see also *Capital Cities*, 50 Cal.App.4th at 1054.) “[T]he cornerstone of a negligent hiring theory is the risk that the employee will act in a certain way and the employee does act in that way.” (*Capital Cities*, 50 Cal.App.4th at 1038, 1054-1055.)

Moving Defendants

argue they cannot be held directly liable for Dr. Sehgal’s conduct based on a theory of negligent supervision. Moving Defendants submit Dr. Sehgal’s declaration in which he attests he has never been tried or convicted of any crime related to sexual assault. (See UMF No. 21.) Moving Defendants also submit the declaration of Debra Nelson, Director of Physician Relations for SCPMG, who attests SCPMG was “not aware of any complaints of a sexual nature being made against Dr. Sehgal prior to [Plaintiff’s] allegations.” (See *id.*, No. 22.)

The Court

finds Moving Defendants meet their burden in negating the element that they knew or should have known Dr. Sehgal was unfit because their evidence negates SCPMG knew or should have known Dr. Sehgal was unfit due to a propensity to engage in sexual misconduct as he had no history of such misconduct. Thus, the burden shifts to Plaintiff to raise a triable issue.

Plaintiff fails to raise a triable issue.

Plaintiff merely argues this claim is valid and relies on his Complaint and medical records as evidence. (See Opp. at 8:14-11:8; UMF No. 6-11.) This evidence fails to raise a triable issue as to this theory of liability.

The Court

next considers whether Defendants negate the vicarious liability theory.

b.

Vicarious Liability

“[A] principal who personally engages in no misconduct may be vicariously liable for the tortious act committed by an agent within the course and scope of the agency...” (*Barenborg v. Sigma Alpha Epsilon Fraternity* (2019) 33 Cal. App.5th 70, 85 (internal citations and quotations omitted).)

A principal

may be vicariously liable for injury committed by an act of its agent where (1) the principal directly authorizes the act to be committed, (2) the agent commits the act in the scope of their agency and in performing service on behalf of the principal, or (3) the principal ratifies its agent's conduct after the fact by electing to adopt the agent's conduct. (See *Doe v. Roman Catholic Archbishop of Los Angeles* (2016) 247 Cal.App.4th 953, 969.)

Moving

Defendants argue SCPMG cannot be held vicariously liable for Dr. Sehgal's alleged misconduct. (See Mot. at 21:1-4.) Moving Defendants rely on *Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291 for this position.

Because

the Court granted Moving Defendants' Motion as to Dr. Sehgal, there is no basis for vicarious liability against SCPMG. Accordingly, Moving Defendants successfully negate the theory of vicarious liability.

Moreover,

the Court finds the instant facts are comparable to those in *Lisa M.* and thus the Court finds SCPMG cannot be held vicariously liable for Dr. Sehgal's alleged misconduct as a matter of law. There, the California Supreme Court held "respondeat superior liability requires that the risk of the tort have been engendered by, 'typical of or broadly incidental to,' or, viewed from a somewhat different perspective, 'a generally foreseeable consequence of,' Hospital's enterprise... a sexual tort will not be considered engendered by the employment unless its motivating emotions were fairly attributable to work-related events or conditions." (*Lisa M.*, 12 Cal.4th at 298, 301.) In *Lisa M.*, the Supreme Court held that because a technician's personal motivations to commit a sexual tort during the performance of an ultrasound exam "were not generated by or an outgrowth of workplace responsibilities", so as to render defendant hospital vicariously liable. (*Id.*, 12 Cal. 4th at 301-02.)

Here,

the SAC's theory of vicarious liability is based on Dr. Sehgal's alleged performance of a Guaiac test for his sexual gratification. (See e.g. SAC, ¶¶ 21, 44.) Moving Defendants' evidence shows Dr. Sehgal performed a Guaiac test during Plaintiff's emergency department visit in compliance with the standard of care and because it was medically indicated. (See UMF Nos. 4, 6, 20.)

This evidence negates that Dr. Sehgal performed a guaiac test because he was motivated by sexual gratification. Assuming arguendo the Motion as to Dr. Sehgal was not granted and Plaintiff met their burden of raising a triable issue as to whether Dr. Sehgal was motivated by sexual gratification, SCPMG would still not be vicariously liable. Like Lisa M. Court concluded, the Court finds Dr. Sehgal's sexual gratification motivation would not be engendered by or an outgrowth of his responsibilities to provide emergency care to patients. Dr. Sehgal's workplace responsibilities to evaluate Plaintiff during his emergency care visit would provide no trigger for Dr. Sehgal to exploit Plaintiff and any "conscious exploitation of the patient [would thus] not arise out of the performance of the examination, although the circumstances of the examination made it possible." Accordingly, SCPMG could not be held vicariously liable for a sexual tort committed by Dr. Sehgal during the provision of his emergency care services to Plaintiff.

Because Moving

Defendants have negated both theories of liability as to SCPMG asserted in all claims, the Court GRANTS Defendants' Motion as to SCPMG.

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V.

CONCLUSION

Based on the foregoing, the Court GRANTS Moving Defendants' Motion for Summary Judgment as to Dr. Sehgal and SCPMG. Given there are no defendants remaining in this action, all future dates are vacated.

IT

IS SO ORDERED.

DATED: July 21, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.

[2] The statute of
limitations for sexual assault claims is "[w]ithin 10 years from the date of
the last act..." or "[w]ithin three years from the date the plaintiff discovers
or reasonably should have discovered that an injury or illness resulted from an
act..." (Code Civ. Proc. § 340.16(a).)